# CERTIFICATE OF INSURANCE

Driftwood Town Center | San Diego, CA

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|---|---|
| **Insured** | Driftwood Town Center Owner LLC |
| **Location Covered** | Driftwood Town Center, 3892 Peachtree Court, San Diego, CA 51055 |
| **Certificate Date** | September 19, 2023 |
| **Mortgagee** | Cobalt Bridge Lending |

## Schedule of Coverages

| Coverage | Carrier | Policy No. | Effective | Expiration | Limit | Deductible |
|---|---|---|---|---|---|---|
| Commercial Property | Keystone Casualty | BOP4018668 | 01/24/2023 | 01/24/2024 | $5,000,000 | $50,000 |
| General Liability | Great Lakes Mutual | CPP6331930 | 09/21/2023 | 09/20/2024 | $5,000,000 | $100,000 |
| Umbrella / Excess | Prairie State Indemnity | GL7477582 | 09/01/2023 | 08/31/2024 | $10,000,000 | $100,000 |
| Business Income | Keystone Casualty | BOP9006118 | 12/13/2025 | 12/13/2026 | $25,000,000 | $10,000 |
| Flood | Allied Heritage Insurance | BOP1614165 | 08/26/2023 | 08/25/2024 | $5,000,000 | $5,000 |
| Windstorm / Hail | Blue Ridge Underwriters | BOP4345717 | 12/30/2023 | 12/29/2024 | $2,000,000 | $25,000 |
| Terrorism (TRIA) | Blue Ridge Underwriters | GL8627279 | 08/04/2023 | 08/03/2024 | $1,000,000 | $100,000 |
| Equipment Breakdown | Great Lakes Mutual | CPP4931912 | 06/01/2026 | 06/01/2027 | $1,000,000 | $25,000 |
| Ordinance & Law | Keystone Casualty | BOP4329810 | 01/09/2025 | 01/09/2026 | $50,000,000 | $10,000 |
| Workers' Compensation | Prairie State Indemnity | UMB6859903 | 11/26/2024 | 11/26/2025 | $1,000,000 | $100,000 |
| Cyber Liability | Keystone Casualty | UMB7020634 | 07/02/2025 | 07/02/2026 | $50,000,000 | $10,000 |
| Crime / Fidelity | Great Lakes Mutual | BOP8750136 | 03/02/2024 | 03/02/2025 | $5,000,000 | $5,000 |
| Pollution Legal Liability | Prairie State Indemnity | BOP1958678 | 03/25/2025 | 03/25/2026 | $25,000,000 | $25,000 |
| Employment Practices | Allied Heritage Insurance | UMB9160981 | 04/09/2023 | 04/08/2024 | $50,000,000 | $5,000 |

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## Schedule of Coverages

| Coverage | Carrier | Policy No. | Effective | Expiration | Limit | Deductible |
|---|---|---|---|---|---|---|
| Commercial Property | Sentinel Property & Casualty | CPP1306682 | 12/20/2025 | 12/20/2026 | $25,000,000 | $5,000 |
| General Liability | Great Lakes Mutual | UMB2257131 | 12/07/2023 | 12/06/2024 | $10,000,000 | $25,000 |
| Umbrella / Excess | Prairie State Indemnity | GL4837043 | 08/29/2024 | 08/29/2025 | $50,000,000 | $100,000 |
| Business Income | Prairie State Indemnity | GL4051154 | 06/02/2025 | 06/02/2026 | $10,000,000 | $50,000 |
| Flood | Keystone Casualty | GL2302752 | 02/01/2024 | 01/31/2025 | $25,000,000 | $25,000 |
| Windstorm / Hail | Blue Ridge Underwriters | BOP5257043 | 02/06/2026 | 02/06/2027 | $2,000,000 | $25,000 |
| Terrorism (TRIA) | Keystone Casualty | CPP1110633 | 05/22/2026 | 05/22/2027 | $5,000,000 | $5,000 |
| Equipment Breakdown | Prairie State Indemnity | GL3892938 | 07/01/2024 | 07/01/2025 | $25,000,000 | $25,000 |
| Ordinance & Law | Keystone Casualty | GL8041854 | 11/08/2023 | 11/07/2024 | $50,000,000 | $10,000 |
| Workers' Compensation | Prairie State Indemnity | GL3620878 | 07/04/2024 | 07/04/2025 | $2,000,000 | $100,000 |
| Cyber Liability | Great Lakes Mutual | GL6566356 | 05/01/2023 | 04/30/2024 | $10,000,000 | $10,000 |
| Crime / Fidelity | Keystone Casualty | BOP5791151 | 09/04/2024 | 09/04/2025 | $50,000,000 | $50,000 |
| Pollution Legal Liability | Blue Ridge Underwriters | UMB4982882 | 01/02/2026 | 01/02/2027 | $2,000,000 | $50,000 |
| Employment Practices | Blue Ridge Underwriters | CPP6400701 | 12/28/2023 | 12/27/2024 | $5,000,000 | $25,000 |

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**1. Appointment.** Owner appoints Manager as the exclusive managing agent of Driftwood Town Center, and Manager accepts the appointment under the terms of this Agreement. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

**2. Term.** This Agreement has an initial term of one year and renews automatically for successive one-year terms unless terminated on thirty days' notice. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

**3. Management Fee.** Manager shall receive a monthly management fee equal to 6.7% of Gross Collected Revenues, plus a construction supervision fee of 5% of capital project costs. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

**4. Duties of Manager.** Manager shall lease, market, operate and maintain the Property, collect rents, pay expenses, hire and supervise on-site personnel and maintain books and records. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

**5. Operating Account.** All receipts shall be deposited in a segregated operating account in Owner's name. Manager is authorized to disburse funds in accordance with the approved budget. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

**6. Budgets and Reporting.** Manager shall submit the annual operating and capital budget at least sixty days before each fiscal year and monthly financial reports by the fifteenth day of each month. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

**7. Spending Authority.** Manager may incur expenses not exceeding $14,000 individually without Owner approval, except in an emergency threatening life or property. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CA. Time is of the essence with respect to each and every provision of this instrument.

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## Schedule of Coverages

| Coverage | Carrier | Policy No. | Effective | Expiration | Limit | Deductible |
|---|---|---|---|---|---|---|
| Commercial Property | Great Lakes Mutual | UMB4096704 | 01/08/2026 | 01/08/2027 | $25,000,000 | $5,000 |
| General Liability | Prairie State Indemnity | BOP3780713 | 05/20/2025 | 05/20/2026 | $2,000,000 | $100,000 |
| Umbrella / Excess | Great Lakes Mutual | CPP4494281 | 06/22/2025 | 06/22/2026 | $10,000,000 | $100,000 |
| Business Income | Keystone Casualty | BOP1544421 | 09/22/2025 | 09/22/2026 | $25,000,000 | $25,000 |
| Flood | Great Lakes Mutual | GL6520695 | 05/04/2025 | 05/04/2026 | $25,000,000 | $25,000 |
| Windstorm / Hail | Great Lakes Mutual | BOP6296279 | 04/26/2025 | 04/26/2026 | $50,000,000 | $10,000 |
| Terrorism (TRIA) | Allied Heritage Insurance | GL8924258 | 04/15/2023 | 04/14/2024 | $5,000,000 | $100,000 |
| Equipment Breakdown | Blue Ridge Underwriters | GL8744048 | 07/11/2024 | 07/11/2025 | $50,000,000 | $10,000 |
| Ordinance & Law | Great Lakes Mutual | UMB3977457 | 04/18/2025 | 04/18/2026 | $25,000,000 | $50,000 |
| Workers' Compensation | Great Lakes Mutual | BOP1282197 | 05/10/2026 | 05/10/2027 | $2,000,000 | $100,000 |
| Cyber Liability | Blue Ridge Underwriters | UMB9978537 | 03/21/2025 | 03/21/2026 | $2,000,000 | $50,000 |
| Crime / Fidelity | Blue Ridge Underwriters | GL4412787 | 03/15/2023 | 03/14/2024 | $2,000,000 | $50,000 |
| Pollution Legal Liability | Allied Heritage Insurance | GL6161707 | 04/17/2023 | 04/16/2024 | $2,000,000 | $25,000 |
| Employment Practices | Great Lakes Mutual | CPP5290944 | 01/18/2023 | 01/18/2024 | $25,000,000 | $25,000 |

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**8. Insurance and Indemnity.** Manager shall maintain workers' compensation, general liability and fidelity coverage and shall indemnify Owner against acts of gross negligence or willful misconduct. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

**9. Termination.** Owner may terminate this Agreement immediately for cause or upon sale of the Property. Manager shall deliver all records within ten days of termination. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CA. Time is of the essence with respect to each and every provision of this instrument.

**10. Appointment.** Owner appoints Manager as the exclusive managing agent of Driftwood Town Center, and Manager accepts the appointment under the terms of this Agreement. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

**11. Term.** This Agreement has an initial term of one year and renews automatically for successive one-year terms unless terminated on thirty days' notice. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

**12. Management Fee.** Manager shall receive a monthly management fee equal to 7.4% of Gross Collected Revenues, plus a construction supervision fee of 5% of capital project costs. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

**13. Duties of Manager.** Manager shall lease, market, operate and maintain the Property, collect rents, pay expenses, hire and supervise on-site personnel and maintain books and records. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CA. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

**14. Operating Account.** All receipts shall be deposited in a segregated operating account in Owner's name. Manager is authorized to disburse funds in accordance with the approved budget. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

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## Schedule of Coverages

| Coverage | Carrier | Policy No. | Effective | Expiration | Limit | Deductible |
|---|---|---|---|---|---|---|
| Commercial Property | Great Lakes Mutual | UMB3356882 | 02/10/2025 | 02/10/2026 | $50,000,000 | $50,000 |
| General Liability | Blue Ridge Underwriters | BOP2201230 | 12/19/2025 | 12/19/2026 | $2,000,000 | $50,000 |
| Umbrella / Excess | Allied Heritage Insurance | UMB4612684 | 07/04/2025 | 07/04/2026 | $2,000,000 | $25,000 |
| Business Income | Allied Heritage Insurance | BOP4198211 | 05/10/2024 | 05/10/2025 | $1,000,000 | $10,000 |
| Flood | Prairie State Indemnity | BOP4660607 | 09/15/2025 | 09/15/2026 | $2,000,000 | $50,000 |
| Windstorm / Hail | Great Lakes Mutual | BOP6170187 | 04/10/2026 | 04/10/2027 | $5,000,000 | $50,000 |
| Terrorism (TRIA) | Prairie State Indemnity | GL4275703 | 06/26/2025 | 06/26/2026 | $50,000,000 | $50,000 |
| Equipment Breakdown | Keystone Casualty | GL8128842 | 10/10/2023 | 10/09/2024 | $50,000,000 | $100,000 |
| Ordinance & Law | Prairie State Indemnity | BOP4580673 | 02/17/2025 | 02/17/2026 | $2,000,000 | $100,000 |
| Workers' Compensation | Allied Heritage Insurance | CPP5837677 | 01/25/2026 | 01/25/2027 | $1,000,000 | $5,000 |
| Cyber Liability | Keystone Casualty | GL9369532 | 01/01/2024 | 12/31/2024 | $50,000,000 | $50,000 |
| Crime / Fidelity | Great Lakes Mutual | BOP6728492 | 05/10/2023 | 05/09/2024 | $50,000,000 | $50,000 |
| Pollution Legal Liability | Allied Heritage Insurance | BOP6212179 | 06/25/2023 | 06/24/2024 | $50,000,000 | $25,000 |
| Employment Practices | Prairie State Indemnity | UMB5521501 | 10/17/2024 | 10/17/2025 | $10,000,000 | $10,000 |

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# Disclaimer and Confidentiality

Each party represents that it has full power and authority to enter into and perform its obligations hereunder. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CA. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. This document relates solely to Driftwood Town Center and has been prepared for the use of the recipient only; it may not be reproduced or distributed.

The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Time is of the essence with respect to each and every provision of this instrument. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. This document relates solely to Driftwood Town Center and has been prepared for the use of the recipient only; it may not be reproduced or distributed.

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